

 Department of Children & Family Services <i>Building a Stronger Louisiana</i>	Division/Section	Family Support
	Chapter No./Name	4-Economic Stability (ES)
	Part No./Name	E-Special Households (FITAP)
	Section No./Name	E-300-FITAP FITAP Special Households (FITAP)
	Document No./Name	E-310-FITAP Minor Unmarried Parent
	Effective Date	May 1, 2016

I. STATEMENT OF POLICY

A minor parent and the dependent child in his or her care must reside in the household of a parent, legal guardian, or other adult relative, or in an adult-supervised supportive living arrangement in order to receive FITAP cash assistance.

E-311- PO FITAP DEFINITION

A minor unmarried parent is a person who is:

- under 18 years of age, and
- has one or more children or is pregnant.

E-312- PO FITAP REQUIRED LIVING ARRANGEMENT

In order to be eligible for assistance, a minor unmarried parent must reside in the home of a:

- parent,
- legal guardian,
- qualified relative other than a parent age 18 or over, or
- in an adult-supervised supportive living arrangement.

EXCEPTION: If the minor unmarried parent does not meet this requirement an exception may be made if:

- The minor parent has no living parent or legal guardian whose whereabouts are known;
- No living parent or legal guardian allows the minor parent to live in their home;
- The minor parent lived apart from a parent or legal guardian for a period of at least one year before either the birth of the dependent child or the application for FITAP;
- The physical or emotional health or safety of the minor parent or dependent child would be jeopardized if they resided in the same residence with the minor parent's parent or legal guardian;
- There is otherwise good cause for the minor parent and dependent child to receive assistance while living apart from the minor parent's parent, legal guardian, or other adult relative, or in an adult-supervised supportive living arrangement.

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	Chapter No./Name	4-Economic Stability (ES)
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Good cause may exist when:

- The adult is temporarily absent from the home.
- The parent or guardian lives out-of-state, is in an institution, or is addicted to drugs or alcohol.
- The minor's return to the parent's or guardian's home would violate their lease or local health or safety standards.
- The minor is in a licensed substance abuse treatment program which would not be available if returned to the parent's or guardian's home.
- The minor alleges that the home of the parent or legal guardian is the scene of illegal activity.
- The minor parent has been emancipated by court order.
- A court order has barred contact between the minor parent and the parent or legal guardian.
- The parent or legal guardian did not provide adequate food, clothing, medical care, or other necessities for the minor parent or the child.

An adult-supervised supportive living arrangement means a private family setting or other living arrangement, other than a public institution, which is maintained as a family setting, as evidenced by the assumption of responsibility for the care and control of the minor unmarried parent and dependent child or the provision of supportive services, such as counseling, guidance, or supervision. This may include:

- foster homes,
- maternity homes, or
- the home of a non-relative age 18 or over who provides supervision for the minor unmarried parent and child.

If the minor unmarried parent is not living in the household of a parent, a legal guardian, or other adult qualified relative, or in an adult-supervised supportive living arrangement:

- Advise the minor of the possible exemptions;
- Assist the minor in obtaining the necessary verifications if one or more of these exceptions is claimed;

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- Determine whether the minor unmarried parent meets one of the exceptions;
- Document the case notes to substantiate the decision;
- Obtain supervisory approval of the decision;

Refer questionable cases to the Regional Program Consultant.

E-313- PO FITAP WHO MUST BE INCLUDED IN THE ASSISTANCE UNIT

The assistance must include:

- The minor unmarried parent's child(ren);
- The minor unmarried parent;
- The minor unmarried parent's siblings under age 18, including half siblings and legal step siblings;
- The minor unmarried parent's parents;
- The parents of the dependent children who are included; and
- The minor unmarried parent's legal stepparent.

See [C-121-FITAP](#) for exceptions to inclusion in the certification.

Note: Eligibility must be determined for two-parent households. Two-parent households are not eligible for FITAP cash assistance unless at least one parent is determined to be physically or mentally incapacitated or caring for a disabled family member living in the home. (See *[C-1510-FITAP](#) **).

E-314- PO FITAP CHILD SUPPORT

If either or both of the parents of the minor unmarried parent are absent from the home, referral must be made on the absent parents of the minor unmarried parent as well as on the absent parent of the child.

Both the minor unmarried parent and the payee are required to cooperate with Child Support Enforcement (CSE).

E-315- PO FITAP REACHING AGE 18

 Department of Children & Family Services <i>Building a Stronger Louisiana</i>	Division/Section	Family Support
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When the minor unmarried parent who is not payee reaches age 18 and meets the requirements of a FITAP child, she and her child may remain included in the existing certification if it is advantageous to the family. However, if the former MUP requests an application be taken in her own name for herself and her child, remove them from the existing certification or close the case, whichever is applicable, and determine their eligibility.

When the minor unmarried parent who is not payee reaches 18 and does not meet the requirements of a FITAP child, she and her child must be removed from the certification or the case closed no later than the month after her 18th birthday. She may apply for assistance in her own name and be certified effective the month of her 18th birthday if not included in another grant that month.

E-316- PO FITAP ADULT SUPPORTIVE LIVING ARRANGEMENT AND WHO SHALL BE PAYEE

There are no policies associated with the procedures.

E-316-1- PO FITAP WHO SHALL BE PAYEE

- If the minor unmarried parent lives in the home of a parent or other qualified relative, the parent or relative must be payee for the minor unmarried parent and child.
- If the minor unmarried parent lives in a supportive living arrangement with a legal guardian or adult who is not a qualified relative, the legal guardian or other adult must be a Third Party Payee of the FITAP grant. If living in a group living arrangement, other than a maternity home, the minor parent may be the payee.
- If the minor unmarried parent meets one of the five exceptions outlined in [E-312- FITAP](#), the minor parent may be payee.

E-317- PO FITAP FOSTER CARE

A child whose minor parent is in Title IV-E Foster Care, Category 08, and who lives in the same foster home or child care institution as the minor parent is not eligible for FITAP cash assistance. This child is required to be included in the Foster Care payment.

A child whose minor parent is certified for state-funded Foster Care payments other than Title IV-E is not included in the Foster Care payment and may be eligible for FITAP cash assistance.

II. PROCEDURES

E-311- PR FITAP DEFINITION

There are no procedures associated with this policy.

 Department of Children & Family Services <i>Building a Stronger Louisiana</i>	Division/Section	Family Support
	Chapter No./Name	4-Economic Stability (ES)
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E-312- PR FITAP REQUIRED LIVING ARRANGEMENT

There are no procedures associated with this policy.

E-313- PR FITAP WHO MUST BE INCLUDED IN THE ASSISTANCE UNIT

If both minor parents of the dependent child are in the home, an eligibility determination must be made in regards to two-parent households. The household is not eligible for FITAP cash assistance unless at least one parent is determined to be physically or mentally incapacitated or caring for a disabled family member living in the home. (See [* C-1510-FITAP **](#)).

E-314- PR FITAP CHILD SUPPORT

If either or both of the parents of the minor unmarried parent are absent from the home, a referral to Child Support Enforcement (CSE) must be made on the absent parents of the minor unmarried parent as well as on the absent parent of the child.

E-315- PR FITAP REACHING AGE 18

When a MUP obtains age 18 and requests an application be taken in her own name for herself and her child, remove them from the existing certification or close the case, whichever is applicable, and determine their eligibility.

She and her child must be removed from the certification or the case closed no later than the month after her 18th birthday. She may apply for assistance in her own name and be certified effective the month of her 18th birthday if not included in another grant that month.

E-316- PR FITAP ADULT SUPPORTIVE LIVING ARRANGEMENT AND WHO SHALL BE PAYEE

There are no procedures associated with this policy.

E-316-1- PR FITAP WHO SHALL BE PAYEE

A minor unmarried parent in a maternity home may be her own payee while in the maternity home if she has no plans to live with a parent or other adult qualified relative after her child is born. The FITAP application is taken in the parish of the maternity home.

If the minor unmarried parent plans to return to the home of a parent or other adult qualified relative after her child is born, the parent, legal guardian or relative must be payee and the application taken in that person's name in their parish of residence.

A FITAP child who enters a maternity home shall remain included in the existing certification if the child plans to return to the home.

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E-317-FITAP PR FOSTER CARE

There are no procedures associated with this policy.

III. FORMS AND INSTRUCTIONS

There are no forms associated with this policy.

IV. REFERENCES

[Code of Federal Regulations, Title 45, Parts 233.10 and 233.107](#)

[LAC 67:III.1221 and 1227](#)